

24STCV32328 24STCV32328

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-10

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Case Number: 24STCV32328 Hearing Date: August 10, 2026 Dept: 617

Dept.

617

Date:

8-10-26

Case

#: 24STCV32328

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendant, General Motors LLC

RESPONDING

PARTY: Unopposed/Plaintiffs, Levon Qasabian and Synergy Hematology-Oncology Medical Associates, Inc.

RELIEF

REQUESTED

Demurrer

to Fifth Cause of Action in First Amended Complaint

Motion

to Strike

SUMMARY OF ACTION

This

is a lemon law action. Plaintiffs Levon Qasabian and Synergy Hematology-Oncology Medical Associates, Inc. sued Defendant General Motors LLC alleging Defendant failed to promptly replace their 2017 Chevrolet Silverado 1500 or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiffs also allege Defendant fraudulently induced the sale of the car by concealing the existence of a transmission defect.

RULING

Demurrer: Overruled.

Defendant demurs to the fifth cause of action in Plaintiffs' First Amended Complaint for fraudulent inducement. It argues that the claim is barred by the statute of limitations, Plaintiffs fail to plead the claim with requisite particularity, and Plaintiffs do not allege a transactional relationship giving rise to a duty to disclose. Plaintiffs filed a 4-court-day late opposition. (Code Civ. Proc., § 1005, subd. (b).) This obviously prejudiced Defendant as the filing occurred on the same day Defendant's reply was due. Plaintiffs provide no reason for the untimely filing and thus the opposition is not considered in ruling on the demurrer. Nonetheless, Defendant's demurrer is overruled.

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demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions

of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

Plaintiffs' claim is not barred by the statute of limitations. “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (Com. for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.) The statute of limitations for fraud is three years. (Code Civ. Proc., § 338, subd. (d).) The cause of action does not accrue “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.) Here, the face of the complaint does not affirmatively show that the fraud claim is barred because no facts indicate when Plaintiffs discovered, or reasonably should have discovered, Defendant's alleged fraud. The mere fact that “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period” does not mean that Plaintiffs discovered or were put on notice of the alleged fraudulent omission at that time. [FAC ¶ 12.] The fraud claim is thus not barred by the statute of limitations.

Defendant next argues that Plaintiffs fail to plead their fraudulent inducement by concealment claim with particularity because they do not allege the specific facts Defendant failed to disclose, its knowledge of those facts, and its intent to defraud. Defendant further contends that Plaintiffs fail to allege a direct transactional relationship between Plaintiffs and Defendant sufficient to trigger a duty to disclose.

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or

suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) As with all other fraud claims, fraudulent concealment must be pled with specificity “even though the focus of inquiry shifts to the unique elements of the claim.” (Id. at p. 43.) Mere conclusory allegations are insufficient. (Id. at p. 44.)

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duty to disclose may arise if “the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge).” (Rattagan, supra, 17 Cal.5th at p. 40.) This circumstance presupposes “a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.’” (Id. at pp. 40-41, quoting *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337.) “If the duty allegedly arose by virtue of the parties’ relationship and defendant’s exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission.” (Id. at pp. 43-44.)

Defendant’s particularity arguments are unavailing. The specific fact Defendant allegedly failed to disclose was the existence of a defect in the 8-speed transmission “that can result in various problems, including, but not limited to hard or harsh shifts, jerking, lurching, hesitation on acceleration, surging and/or inability to control the vehicle’s speed, acceleration, or deceleration.” [FAC ¶ 63.] Defendant had knowledge of this defect “through sources not available to consumers such as Plaintiffs, including but not limited to pre-production and post-production testing data; early consumer complaints about the Transmission Defect made directly to Defendant GM and its network of dealers; aggregate warranty data compiled from Defendant GM’s network of dealers; testing conducted by Defendant GM in response to these complaints; as well as warranty

repair and part replacements data received by Defendant GM from Defendant GM's network of dealers, amongst other sources of internal information." [Id. ¶ 64.]

And Plaintiffs allege intent to defraud because Defendant omitted the existence of the defect to induce the sale of the car. [Id. ¶¶ 73-74.] Defendant's particularity challenges therefore do not defeat Plaintiffs' fraud claim.

Plaintiffs further plead a special relationship sufficient to trigger a duty to disclose. They allege that on or about December 31, 2016, they entered into a "warranty contract" with Defendant. [FAC ¶ 7.] Such a contractual relationship may support a duty to disclose on behalf of Defendant. (Rattagan, supra, 17 Cal.5th at pp. 40-41.) Defendant's provision of a warranty to Plaintiffs is not a transaction between Defendant and "the public at large" as Defendant provided the warranty directly to Plaintiffs. (Id. at p. 41.) Plaintiffs have thus alleged a special relationship between them and Defendant. Defendant's demurrer to the fraudulent inducement claim is therefore overruled.

Motion to Strike: Denied.

Defendant moves to strike Plaintiffs' prayer for punitive damages in sub-paragraph "g" of their prayer for relief. It argues that Plaintiffs' fraud claim fails and their punitive damages claim falls with it. Plaintiffs do not oppose the motion. The motion to strike is denied because Plaintiffs plead a fraud claim that forms the basis of their punitive damages request.

To support punitive damages, the plaintiff's complaint "must allege ultimate facts of the defendant's oppression, fraud, or malice." (Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) "Fraud" is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

As explained in the Court's ruling on Defendant's demurrer, Defendant's challenge to Plaintiffs' fraudulent inducement by concealment claim fails. The fraud cause of action is sufficient to support Plaintiffs' punitive damages claim. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 610.) Thus, Plaintiffs have sufficiently alleged facts to support their punitive damages claim against

Defendant and the motion to strike is denied.

Defendant

to answer the operative complaint within 10 days.

Defendant

to give notice.